

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.



CHAPTER ccxvi.

An Act to confer on the urban district council of Radcliffe further powers with regard to their tramways undertaking to construct new tramways and street improvements to extend the Town's Yard and to make further provision in regard to the supply of electricity and for the improvement health local government and finance of the district and for other purposes.

A.D. 1904.

[15th August 1904.]

WHEREAS the urban district of Radcliffe in the county Palatine of Lancaster (in this Act called "the district") is under the local government of the urban district council of Radcliffe (in this Act called "the Council") and the Council are the local authority of the district within the meaning of the Tramways Act 1870 :

And whereas by the Radcliffe Urban District Council Tramways Order 1900 confirmed by the Tramways Orders Confirmation (No. 2) Act 1900 the Council were authorised to construct certain tramways within the district and it is expedient that the time within which those tramways are to be so constructed should be extended or revived and that the Council should be authorised to construct extensions of their tramway system in the district and the adjoining parish of Ainsworth :

And whereas it is provided by Article VI. of the said Order that Tramway No. 3 thereby authorised shall not be constructed in Chapel Street Bury Street or Dumers Lane opposite any house shop or warehouse belonging to or occupied by Messrs. Richard Bealey and Company without the consent in writing of that firm or their successors :

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And whereas it is of importance to the efficient working of the tramways of the Council that there should be direct communication with the tramways belonging to the mayor aldermen and burgesses of the borough of Bury (in this Act called "the corporation of Bury") and particularly that the Council should be empowered to enter into agreement with that corporation with regard to the construction maintenance and working of Tramway No. 20 authorised by the Bury Corporation Tramways Act 1901 and running over the same:

And whereas it is expedient that further powers should be conferred upon the Council with reference to their tramway undertaking:

And whereas by the Radcliffe Electric Lighting Order 1895 confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1895 the Council were empowered to produce and supply electrical energy within the district for all public and private purposes and the works in connexion therewith are now being erected and it is expedient to make further provision with regard to the supply of electrical energy by the Council:

And whereas it is desirable that the Council should be empowered to construct the street widenings and to acquire lands for that purpose and for the extension of the Town's Yard:

And whereas it is expedient that further and better provision should be made with reference to the markets undertaking of the Council and to the buildings streets and sanitary matters and for the improvement health and local government of the district and that the powers of the Council in relation thereto should be enlarged and extended:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Council in relation to the following purposes in respect of which they are by this Act authorised to borrow money and such estimates are as follows:—

	£
For the purchase of the lands for and for the construction of the street widenings authorised by this Act	30000
For and in connexion with the construction of the tramways authorised by the Tramways Order 1900	64821

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	£	A.D. 1904.
For and in connexion with the construction of the tramways authorised by this Act -	14573	
For the purchase of lands for and the extension of the Town's Yard -	5000	

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference to the plans containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required for the purposes of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas an absolute majority of the whole number of the Council at a meeting held on the nineteenth day of November one thousand nine hundred and three after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the Radcliffe Times a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that it was expedient to promote the Bill for this Act :

And whereas such resolution was published twice in the Radcliffe Times a local newspaper circulating in the district and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the eleventh day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

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A.D. 1904. — and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Radcliffe Tramways and Improvement Act 1904.

Incorporation of Acts. 2. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and sections 3 and 19 and Parts II. and III. of the Tramways Act 1870 so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act.

Interpretation. 3. In this Act the following words and expressions have the meanings hereby assigned unless the subject or context otherwise requires :—

“The district” means the urban district of Radcliffe;

“The Council” means the urban district council of the district;

“The district fund” and “general district rate” mean the district fund and general district rate of the district;

“The clerk” “the surveyor” “the medical officer” “the inspector of nuisances” mean respectively the clerk and surveyor to the Council and the medical officer of health and inspector of nuisances of the district and “medical officer” includes any deputy medical officer of health duly appointed;

“The Electric Lighting Order 1895” means the Radcliffe Electric Lighting Order 1895;

“The Tramways Order 1900” means the Radcliffe Urban District Council Tramways Order 1900;

“The tramways” means the tramways authorised by the Tramways Order 1900;

“The extension tramways” means the tramways authorised by this Act;

“The Council’s tramways” means the tramways owned leased or worked by the Council;

“The tramway undertaking” means the tramway undertaking of the Council for the time being authorised;

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"Tramway revenue" means all revenue of the tramway undertaking and whether by way of rent or otherwise; A.D. 1904.

"Mechanical power" includes steam electrical and every other motive power not being animal power;

"Engine" includes motor;

"Infectious disease" means any infectious disease to which the Infectious Disease (Notification) Act 1889 applies for the time being within the district;

"Dairyman" means any cowkeeper purveyor of milk or occupier of a dairy;

"Dairy" means and includes any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale;

"Recreation ground" includes public parks walks and pleasure grounds;

"Sky-sign" means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky-sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression "sky-sign" shall also include any balloon parachute or similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

(1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement;

(2) Any sign on any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported;

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(3) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place ;

“ Daily penalty ” means a penalty for every day on which any offence is continued after conviction ;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include any securities of the Council or annuities rentcharges or securities transferable by delivery ;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

Unless the subject or context otherwise requires words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act or by the Public Health Acts have in this Act the same respective meanings.

PART II.

TRAMWAYS.

4. Subject to the provisions of this Act and of Parts II. and III. of the Tramways Act 1870 the Council may make form lay down work use and maintain in the lines and according to the

Power to
make new
tramways.

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levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections the tramways hereinafter described with all proper rails plates passing-places turntables channels passages tubes cables wires and electric lines posts poles brackets turnouts crossings engine and boiler houses sheds stables buildings dynamos works and conveniences connected therewith namely :—

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Tramway No. 5 (6 furlongs and 1 chain in length of which 2 furlongs and 3 chains will be single line and 3 furlongs and 8 chains will be double) partly in the parish of Ainsworth and partly in the district commencing in Ainsworth Road by a junction with Tramway No. 2 authorised by the Tramways Order 1900 at its termination and terminating in the Bury and Bolton Road at the boundary between the district and the borough of Bury :

Tramway No. 6 (1 furlong and 8 chains in length the whole of which will be double line) in the parish of Ainsworth commencing by a junction with Tramway No. 5 and terminating in the Bury and Bolton Road opposite the approach to Top-o'-th-Carrs Farm :

Tramway No. 6A—(3 chains in length the whole of which will be double line) forming a junction between Tramway No. 5 and Tramway No. 6.

5. The tramways authorised by this Act shall be deemed to form one undertaking with the tramways authorised by the Tramways Order 1900 and the provisions of that Order shall subject to the provisions of this Act apply to the tramways authorised by this Act as if such tramways had been part of the tramways authorised by the said Order.

New tramways to form part of tramways authorised by Order of 1900.

6. Article 26 (For protection of the Postmaster-General) of the Tramways Order 1900 shall be and is hereby amended as follows :—

For protection of Postmaster-General.

(1) Subsection (3) (A) thereof shall be read as if the words within brackets “or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point” were omitted and such words shall be deemed to be omitted from the said subsection :

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(2) The following provision shall have effect in addition to and shall be read with the provisions contained in the said article :—

If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Council is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Council's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Council enter any of the Council's works for the purpose of inspecting the Council's plant and the working of the same and the Council shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Council pursuant to the Board of Trade regulations.

Revival of
tramway
powers.

7. The powers conferred upon the Council by the Tramways Order 1900 shall be deemed to have been and to be unaffected by the failure to commence the construction of the tramways thereby authorised and to complete and open the same for public traffic within the respective periods prescribed by the Tramways Act 1870 and if the Council do not commence the construction of the said tramways and the extension tramways and complete and open the same for public traffic within five years after the commencement of this Act the powers conferred upon the Council by the Tramways Order 1900 and this Act for the construction of the said tramways shall cease and the Tramways Order 1900 shall be read and have effect accordingly :

Provided always that in constructing Tramway No. 3 authorised by the Tramways Order 1900 where the same passes the entrance into the mill warehouse of John James Bowker from Chapel Street the Council shall not without the consent in writing of the said John James Bowker construct the same otherwise than as a single line.

Junctions
with tram-
ways which
can be
worked in

8. The Council may form junctions between the tramways authorised by the Tramways Order 1900 or this Act and any tramways within or without the district which can be worked in

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connexion therewith but only with the consent of the owners and lessees of such tramways and as to such of them as may be without the district with the consent of the local authority within whose jurisdiction such junctions would be formed.

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connexion
with Coun-
cil's tram-
ways.

9. The Council in any street within the district in which they have laid down or are authorised to lay down a single line of tramway may with the consent of the Board of Trade in lieu thereof lay down a double line or an interlacing line of tramway and in any street in which they have laid down or are authorised to lay down a double line or an interlacing line of tramways they may with the like consent of the Board of Trade in lieu thereof lay down a single line of tramway and if at any time after the construction of any tramway of the Council the street in which the same is laid has been or shall be altered or widened the Council may take up and remove such tramway or any part thereof and reconstruct the same in such position in the said street as they think fit. Provided that in the exercise of the powers of this section no rail shall except with the consent of the Board of Trade be so laid that a less space than nine feet six inches shall intervene between such rail and the outside of the footpath on either side of the road if one-third of the owners or one-third of the occupiers of the houses shops or warehouses abutting upon the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Council within three weeks after receiving from the Council notice in writing of their intention express their objection thereto. Provided further that nothing in this section contained shall authorise or empower the Council to execute any work in contravention of the provisions of subsection (1) of section 8 of the Tramways Order 1900 (the marginal note of which is "For protection of Lancashire and Yorkshire Railway Company") without the consent of that company.

Power to lay
down double
or inter-
lacing lines
in place of
single lines
and vice
versâ.

10. Notwithstanding anything in this Act the provisions of this section shall apply for the protection of the county council of the administrative county of the county palatine of Lancaster (herein-after called "the county council") and the ratepayers and inhabitants of the said administrative county unless otherwise agreed in writing between the county council and the Council (that is to say):—

For pro-
tection of
Lancashire
County
Council.

- (1) (A) Before any tramway by this Act authorised to be laid in or along any main road within the said administrative county is opened for public traffic the Council

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shall at their own expense widen the main roads along which such tramway shall be laid to a uniform width of not less than twenty-seven feet of metalled carriageway in addition to the existing width of footpath save and except that where owing to there being buildings opposite each other on both sides of the road the cost of purchasing land for such widening would be unreasonably excessive the Council shall on obtaining a certificate of exemption from the county surveyor be exempt from the obligation of this section. Any difference or dispute between the Council and the county council which may arise as to whether such certificate should be given or otherwise in respect of this section shall be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board ;

(B) The Council shall at their own expense pave the widened portion of the carriageway and footpath (if any) with the same class of paving as exists in the main road before it is widened :

(2) The Council shall at their own expense pave so much of any main road whereon any of the extension tramways authorised by this Act are laid as lies between the rails and as extends eighteen inches beyond the rails of and on each side of any such tramway with granite cubes or setts or such other paving as the county council may reasonably approve and in all cases where the nearest rail of such tramways is of less distance than seven feet of the outer edge of the footpath or boundary of the carriageway on either side the intervening spaces between the rail and footpath or boundary of the carriageway shall be paved in like manner to the reasonable satisfaction of the county council and the Council shall so long as they shall work the said tramways keep and maintain the same respectively in good repair and condition and in the event of any subsequent deviation or alteration of the said tramways the consent of the county council shall be obtained before such deviation or alteration is made :

(3) Any setts and other paving materials taken up in the construction of the tramways and in widening the main

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roads as aforesaid from any road in the township of Ainsworth and not relaid in such roads shall be the property of the county council and be handed over to the county surveyor. A.D. 1904.

11. For the protection of the Bury and District Joint Water Board (in this section referred to as "the board") the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed between the board and the Council have effect (that is to say):—

For protection of mains of Bury and District Joint Water Board.

(A) The Council shall repay to the board the amount of capital expended by them in the providing and laying of mains and service pipes for the supply of water in those highways or streets or parts of highways or streets which the Council shall stop up and appropriate under the powers of this Act and such mains and pipes so dispensed with shall be the property of the Council:

(B) The provisions of sections 30 32 and 33 of the Tramways Act 1870 shall for the purposes of this Act extend and apply to the water mains pipes and apparatus of the board and shall be construed as if "board" were mentioned in those sections in addition to "company body persons or person" Provided that any penalties recovered under section 30 of the said Act shall be applied by the board as revenue arising from their undertaking.

12. For the protection of the mayor aldermen and burgesses of the borough of Bolton (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed between the corporation and the Council have effect:—

For protection of corporation of Bolton.

(A) The Council shall in executing any work take such precautions and do such acts as the corporation may reasonably require for preventing injury to or interference with any main pipe or other property belonging to the corporation:

(B) If at any time any water main or pipe vested in or belonging to the corporation shall be or become injured or damaged by reason or in consequence of any act or default of the Council or of their contractors or of any servant of either of them the corporation may immediately thereupon or at any time thereafter at the

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cost of the Council execute such acts and works as the corporation may deem necessary in order to effect the reinstatement of such water main or pipe to as good a condition as it was prior to such damage or injury :

(c) The Council shall not alter the position of any main or of any pipe of the corporation under the powers contained in section 30 of the Tramways Act 1870 contrary to the provisions of and regulations under any Act of Parliament for the time being in force relating to the corporation and shall unless otherwise agreed between the Council and the corporation in the case of any alteration of the position of any such mains or pipes relay the same at a depth of not less than that at which such main or pipe was previously laid and so as in all cases to leave a covering of at least thirty inches from the surface of the road above such main or pipe :

(d) If any difference shall arise between the corporation and the Council as to anything to be done or not to be done under this section the same shall be referred to an arbitrator to be appointed by the Board of Trade upon the application of either party.

For protec-
tion of John
James Bow-
ker.

13. For the protection of John James Bowker his executors administrators and assigns (all of whom are included in the expression "John James Bowker") the following provisions shall unless otherwise agreed between John James Bowker and the Council be observed and have effect (that is to say) :—

Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Council shall not acquire any greater portion of the property numbered 9 on the deposited plans than the portion coloured red on the plan signed in duplicate by William Lythgoe Rothwell on behalf of the Council and by John James Bowker and they shall not acquire the said portion of the said property unless and until they shall have acquired from the parties other than John James Bowker interested therein such right or interest in the portion coloured blue on the said signed plan of the property numbered 10 on the deposited plans as will enable them to construct a cover

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over the portion of the mill goit situate upon the said last-mentioned property and to permit the use of the surface of such cover when constructed for the purposes of and as part of the adjoining mill yard of John James Bowker nor until they shall in a sufficient and competent manner and to the reasonable satisfaction of the surveyor of John James Bowker have so constructed such cover over the said portion of mill goit and shall have transferred and assured the said right or interest in the said property numbered 10 to the said John James Bowker.

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14. The Council may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the Council's tramways by mechanical power Provided that—

Power to
attach
brackets &c.
to buildings.

(1) Where in the opinion of the Council any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid:

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after the owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Council notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):

(3) The owner may require the Council to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purposes of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

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Power to
Council to
purchase
tramways
outside dis-
trict.

15.—(1) The powers conferred on the Council by the Tramways Act 1870 to purchase tramways within the district by agreement is hereby extended so as to authorise the Council to purchase (by agreement with the owners and lessees (if any) thereof and with the consent of the local authority in whose district they are situate) any tramways outside the district which form or may form continuations of the tramways authorised by the Tramways Order 1900 or this Act at any time existing within the district or which can be worked in connexion therewith and the Council may by agreement and with such consent as aforesaid in lieu of purchasing take a lease of any such tramways without the district.

(2) Nothing in this section shall take away alter or prejudice the right of the local authority in any adjacent district subject as aforesaid to purchase the tramways in that district under and in accordance with the provisions of section 43 of the Tramways Act 1870 and if the Council purchase any tramways in any adjacent district from the local authority thereof such local authority may re-purchase the same under and in accordance with the provisions of the said section and in construing that section for the purposes of this section the Council shall be deemed the promoters of such tramways.

(3) Any sale effected under the provisions of this section by any local authority shall be only in consideration of a sum in gross and such sum shall be applied by the local authority to whom the same is payable in extinguishment of any loan borrowed by that authority for the purposes of the tramways so sold or shall be added to the sinking fund established for the payment of such loan. Provided that such moneys shall not be applicable to the payment of instalments or to payments required to be made to the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. Provided also that borrowed money so discharged shall not be re-borrowed.

Power to
Council to
work tram-
ways.

16. Notwithstanding anything in the Tramways Act 1870 to the contrary the Council may place and run carriages on and may work and may demand and take tolls and charges in respect of any of the tramways authorised by the Tramways Order 1900 or this Act and (with the consent of the corporation of Bury) Tramway No. 20 authorised by the Bury Corporation Tramways Act 1901 and any other tramways vested in them (subject as to

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such of them as are leased or agreed to be leased to the Council A.D. 1904.
by any other body or person to the terms and conditions of such
lease or agreement) and in respect of the use of such carriages
and may hire purchase or provide such tramway plant (including
in that term car-sheds stables buildings carriages trucks harness
engines machinery apparatus horses steam cables electric and
other plant appliances and conveniences) as may be requisite or
expedient for the convenient working or user of the Council's
tramways by animal or mechanical power and may sell exchange
or dispose of such of the before-mentioned articles and things as
from time to time may no longer be required.

17.—(1) The Council may enter into and carry into effect Agreements
for leasing
working &c.
contracts and agreements with the corporation of Bury with respect
to the construction repair maintenance and working of Tramway
No. 20 authorised by the Bury Corporation Tramways Act 1901
and of any tramway or portion of tramway which the corpo-
ration of Bury may be authorised to construct in connexion with
or forming a junction with any of the Council's tramways.

(2) The Council may with the approval of the Board of
Trade enter into and carry into effect agreements with any local
authority company body or person owning leasing running over
or using any tramway or light railway with which any tramway
of or leased to worked or run over by the Council connects with
respect to the lease reconstruction alteration equipment working
running over use management and maintenance of all or any
of the respective tramways light railways and works owned by
leased to run over or used by any of the contracting parties or
any part or parts thereof respectively the making of all necessary
junctions the supply by any of the contracting parties to the
other or others of them under and during the continuance of any
such agreement of rolling stock plant machinery and electrical
energy or power necessary for the purposes of such agreement
the appointment and removal of officers and servants the pay-
ments to be made and the conditions to be performed in respect of
any such lease or other such contract or agreement or in respect
of such working use management maintenance or the exercise
of running powers the interchange accommodation conveyance
transmission and delivery of traffic coming from or destined
for the respective undertakings of the contracting parties and
the payment collection division and apportionment of the revenue
arising from the respective undertakings and the payment of

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A.D. 1904. — any fixed or contingent rent and subject to the right of any local authority to purchase any portion of the undertaking any lease contract or agreement made under the powers of this section may be for any period not exceeding thirty years.

(3) Notwithstanding anything contained in the Bury Corporation Tramways Act 1901 or in the Tramways Order 1900 any lease from the Council to the corporation of Bury of all or any of the tramways numbered 1 2 2A 3 and 3A comprised in the Council's tramways and any agreement made between the Council and the corporation of Bury with respect to the equipment working running over use management or maintenance of any of the said tramways numbered as herein-before mentioned may include provisions for defining and regulating the design plan method and details of construction of such tramways and limiting the amount of capital expenditure to be incurred in connexion therewith for apportioning between the Council and the corporation of Bury the cost and expenses of widening rebuilding or altering Hardy's Gate Bridge and the approaches thereto for binding either or both of the parties with regard to obtaining any consents for or incident to the construction of such tramways or any part thereof for limiting the fares rates or charges to be taken for the conveyance upon such tramways of passengers generally or of passengers of any particular class or of animals goods minerals or parcels for imposing upon the corporation of Bury an obligation to give facilities for the conveyance of animals goods minerals or parcels upon such tramways for authorising the corporation of Bury to enter into agreements with other corporations or authorities by which running powers over such tramways shall be granted for authorising the corporation of Bury to deal with any actions claims or demands which may be made against the Council in connexion with such tramways and for that purpose to use the name and act on behalf of the Council for regulating the exercise by the Council of any powers vested in them as local or road authority of executing works affecting the surface or soil of any road along which such tramways are laid or any powers vested in them of making temporary tramways upon any such road for authorising the corporation of Bury to take from the Council and the Council to supply electrical energy for tramway purposes at such price and upon such terms as may be agreed between the parties for regulating the manner in which the revenue or income derived from the working of such tramways shall be applied and

prescribing what expenses shall be payable thereout and in what order for prescribing the manner in which any deficiencies in such revenue or income shall be dealt with and made good and the rate of interest (if any) to be allowed thereon for making a division of any surplus of such revenue or income between the Council and the corporation of Bury for authorising or requiring the Council to purchase at such time and upon such terms as may be agreed between the parties all or any of the equipment or properties provided by the corporation of Bury in connexion with such tramways and for imposing upon the corporation of Bury the obligation of observing and conforming to any of the provisions of the 'Tramways Order 1900 and of this Act with reference to such tramways and such provisions so included in any such lease or agreement may and shall be observed and carried into effect by the Council and the corporation of Bury respectively.

A.D. 1904.

(4) Notwithstanding anything contained in the Bury Corporation Tramways Act 1901 the corporation of Bury are hereby authorised to accept from the Council a lease of all or any of the tramways numbered 1 2 2A 3 and 3A comprised in the Council's tramways for any term or to enter into an agreement with the Council with respect to any of the purposes referred to in this section for any period provided that such term or period shall not exceed thirty years.

(5) Notwithstanding anything contained in the Bury Corporation Tramways Act 1901 the corporation of Bury shall not put into execution with respect to any of the Council's tramways any powers conferred by that Act which shall conflict or be inconsistent with the provisions of any lease of such tramways taken by them from the Council or any agreement made by them with the Council with respect to any of the purposes referred to in this section.

18. Section 43 of the Tramways Act 1870 in its application to the extension tramways shall be read and construed as if a period of forty-two years were therein mentioned instead of a period of twenty-one years.

Period for purchase of extension tramways.

19. For the purpose of constructing any of the tramways or extension tramways the Council may with the consent of the road and local authority increase the width of the carriageway of any street in which a tramway is to be laid by reducing the width of the footway on each or either side of such street to a width of not less than six feet.

Council may reduce width of footway for constructing tramway.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

Power to use
omnibuses.

20. The Council may provide and maintain and may work run or use omnibuses in connexion with the Council's tramways along the routes of the intended tramways during construction or during the reconstruction of any of the tramways and they may levy and take such tolls rates or charges for the use of such omnibuses as they may think reasonable.

PART III.

STREET WORKS AND LANDS.

Power to
construct
works.

21. Subject to the provisions of this Act the Council may in the lines and according to the levels shown upon the deposited plans and sections relating thereto make the street widenings herein-after mentioned and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference relating thereto as may be required for those purposes or in connexion therewith (that is to say):—

- (1) A street widening commencing in Church Street on the southerly side thereof from the easterly side of the Whittaker Brook to a point in the said street 15 yards or thereabouts south-east of the south-easterly corner of the bridge carrying the said street over the Whittaker Brook :
- (2) A street widening in Dumers Lane on the west side of the said street commencing at a point 9 yards or thereabouts from the north-east corner of the grounds of the convalescent hospital and terminating at a point 65 yards or thereabouts from the south-west corner of the approach road to Broad Dumers Works measured in a south-westerly direction :
- (3) A street widening in Bury Street opposite Tithe Barn Street commencing at the westerly side of the entrance gates to the Wesleyan chapel and terminating at the southern corner of premises in the occupation of the Radcliffe and Pilkington Co-operative Society Limited :
- (4) A street widening in Spring Lane and Cross Lane on the north-westerly side of the said street from a point 25 yards or thereabouts west of the south-west corner of Butterworth Street in a north-easterly direction along the said street to the junction of Cross Lane with Within Street and on the south-east side of

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

Cross Lane from the north-west corner of the George Hotel to the junction of the said street with Bury Street: A.D. 1904.

- (5) A street widening in Rectory Lane on the westerly side thereof from the junction of the said street with Spring Lane to its junction with Church Street:
- (6) A street widening in Toad Street and Church Street on the north-westerly side of Toad Street from a point at the south-east corner of Thomas Street to a point 33 yards or thereabouts from the south-west corner of Bridgefields Street and along Bridgefields Street to its junction with Quarry Street and from a point 38 yards or thereabouts to a point 63 yards or thereabouts from the south-east corner of Barlow Street and on the south-east side of Church Street from a point immediately opposite the south-west corner of Seymour Street in a southerly direction to a point 25 yards therefrom:
- (7) A street widening in Blackburn Street on the westerly side thereof from a point 27 yards or thereabouts north of the north-westerly corner of Railway Street to a point 41 yards or thereabouts from the said corner and from a point 12 yards or thereabouts from the north-westerly corner of West Street to a point 23 yards or thereabouts from the said corner and from a point 18 yards or thereabouts from the north-easterly side of Green Street to the south-westerly corner of the bridge carrying Blackburn Street over the Lancashire and Yorkshire Railway:
- (8) A street widening in Blackburn Street on the easterly side thereof from its junction with Spring Lane and Water Street to its junction with Heber Street and from Heber Street southwards for a distance of 7 yards or thereabouts and also from a point 16 yards or thereabouts from the north-east corner of the bridge over the Lancashire and Yorkshire Railway for a distance of 14 yards or thereabouts in a north-westerly direction and on the west side of Blackburn Street from its junction with Abden Street in a south-easterly direction to a point measured in a north-westerly direction from

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

the north-west corner of the bridge over the Lancashire and Yorkshire Railway :

- (9) A street widening in Spring Lane on the north side from the south-easterly corner of the Council's offices to Parsonage Street and on the south side from the junction of Spring Lane with Blackburn Street and Water Street to the bridge over the Lancashire and Yorkshire Railway opposite the centre of Whittaker Street :
- (10) A street widening in Water Street on the north side thereof from its junction with Knowles Street in a westerly direction to the entrance to the courtyard situate midway between that street and Ainsworth Road and on the south side of the said street from a point 30 yards or thereabouts east of the entrance to the said courtyard to the western end of the bridge over the Manchester Bolton and Bury Canal :
- (11) A street widening in Ainsworth Road on the east side thereof from a point 20 yards or thereabouts to a point 42 yards or thereabouts from the south-east corner of the said road :
- (12) A street widening in Ainsworth Road on the east side thereof from the north-east corner of Peter Street in a northerly direction for a distance of 16 yards or thereabouts :
- (13) A street widening in Bolton Road on the northerly side thereof from Countess Lane to Windsor Street and on the southerly side from a point in Stopes Road opposite Bennet Street in an easterly direction to Lavender Street :
- (14) A street widening in Stopes Road on the south side thereof from a point at the eastern boundary of the Wellington Pottery Works to a point 50 yards or thereabouts measured in a south-easterly direction along the defined boundary between the urban districts of Little Lever and Radcliffe from opposite the south-west corner of the Wellington Hotel.

For protection of Lancashire and Yorkshire Railway Company.

22. For the protection of the Lancashire and Yorkshire Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed upon between

the Council and the company be observed and have effect (that A.D. 1904.
is to say):—

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not acquire the land belonging to the company numbered 266 on the deposited plans:

(2) The widening of Spring Lane so far as it affects the company's property shall be constructed and maintained in every respect at the expense of the Council and under the superintendence and to the reasonable satisfaction of the principal engineer of the company and as to such construction in accordance with plans sections and specifications which shall be previously submitted to him for approval which approval shall not be unreasonably withheld. Provided always that if the said engineer shall for the period of one month refuse or neglect to approve such plans sections and specifications or if any difference arise between the said engineer and the engineer of the Council the said widening shall be constructed according to plans sections and specifications to be submitted to and approved by an engineer to be agreed upon or in default of agreement to be appointed at the request of either the Council or the company by the President of the Institution of Civil Engineers.

23. Subject to the provisions of this Act the Council may enter upon take and use the lands buildings and hereditaments shown upon the deposited plans and described in the book of reference as being on the east side of Parsnage Street for the purpose of extending the Town's Yard Technical School and Baths or for storage purposes and may lay out and maintain the same with all necessary buildings walls mains pipes and other works as may be necessary or desirable for such extension or storage purposes or in connexion therewith.

Extension of
Town's
Yard.

24. The Council may during the execution and for the purposes of any work by this Act authorised stop up any street (not being a road or footway giving access to any passenger or goods station of a railway company) and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable

Temporary
stoppage of
streets.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 Edw. 7.]
Act, 1904.

A.D. 1904. — time The Council shall provide reasonable access for all persons so bonâ fide going to or returning from any such house.

Power to
make subsi-
diary works.

25. Subject to the provisions of this Act and within the limits defined on the deposited plans the Council in connexion with the street works authorised by this Act and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said street works and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said street works or of crossing under or over the same or otherwise and may alter divert stop up inclose use or appropriate all or any part of any street square place court alley or passage whether a thoroughfare or not or of any thoroughfare road lane or way or of any drain sewer or other property shown on the deposited plans the Council providing a proper substitute before interrupting the flow of sewerage in any drain or sewer Provided that the provisions of section 308 of the Public Health Act 1875 (Compensation in case of damage by local authority) shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Power to
alter steps
areas and
pipes.

26. The Council within the limits of deviation defined upon the deposited plans may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains mains and the leaden and other pipes or wires which for the purpose of conveying water electricity or gas to any house or other place shall be laid into or from any main cable or pipe laid down by the Council and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Power to
Council to
make agree-
ments with
owners of
property.

27. The Council may subject to the provisions of this Act from time to time enter into and carry into effect agreements with any person being the owner of or interested in any lands houses or property abutting on any portion of the works authorised by this Act or lands purchased and taken under the powers of this Act with respect to the sale by the Council to such person

of any lands or property acquired under this Act (including any street or thoroughfare or any part of a street or thoroughfare appropriated by the Council under the powers of this Act and not required for the purposes of this Act) for such consideration as may be agreed upon between the Council and such person and the Council may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or other property required by the Council for the purposes of this Act.

A.D. 1904.

28. In constructing the works authorised by the foregoing provisions of this Part of this Act the Council may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards.

Power to deviate.

29. If the works authorised by the foregoing provisions of this Part of this Act are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as is then completed.

Period for completion of works.

30. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county palatine of Lancaster for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county palatine of Lancaster and a duplicate thereof shall also be deposited with the clerk of the Council and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk of the Council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such

Correction of errors &c. in deposited plans and book of reference.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

31. The powers of the Council for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Power to purchase lands by agreement and to appropriate lands.

32.—(1) The Council may for any of the purposes of this Act purchase take and hold (by agreement but not otherwise) any lands and hereditaments within the district not exceeding in the whole twenty acres in addition to the lands to be compulsorily acquired under this Act which the Council may require for the purposes of their tramway street widenings Town's Yard or electricity undertakings and the Council with the consent of the Local Government Board and subject to such conditions as that Board may prescribe may appropriate and use for any such purpose or for any other purpose of the Public Health Acts any lands or property for the time being vested in them which are not wanted for the purpose for which such lands or property were originally acquired but the Council shall not create or permit a nuisance on any such lands.

(2) The consideration for such acquisition may be either money or land or a mixed consideration of money and land and on any exchange the Council may give or take any money for equality of exchange.

Persons under disability may grant easements &c.

33. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Owners may be required to sell parts only of certain lands and buildings.

34. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Council of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans may be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:— A.D. 1904.

- (1) The owners of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
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A.D. 1904.

such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion of such costs charges and expenses as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey a part only of any property.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

35. In estimating the amount of compensation or purchase money to be paid by the Council under this Act the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of any street shall be fairly estimated and shall be set off against the said compensation or purchase money.

A.D. 1904.
Assessment
of compensa-
tion.

36. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit and may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands acquired by them under this Act or any interest therein and may sell exchange or dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to
retain sell
&c. lands.

37. So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on re-sale or exchange or by way of fine or premium on the grant or renewal of leases as aforesaid in the purchase of lands so remaining to be acquired but as to any capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board Provided that the amount to be applied in the purchase of land under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such lands Provided further that the borrowing powers by this Act authorised for the acquisition of such lands shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Proceeds of
sale of sur-
plus lands.

38. The agreement dated the twenty-eighth day of March one thousand nine hundred and four and made between the Council

Confirming
agreement with
A. C. Bealey
and Sons.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 Edw. 7.]
Act, 1904.

A.D. 1904. of the one part and Adam Crompton Bealey Herbert Crompton Bealey and Adam Crompton Bealey the younger of the other part as set forth in the Third Schedule to this Act is hereby confirmed and made binding upon the parties thereto respectively and the proviso relating to Tramway No. 3 in Article VI. of the Tramways Order 1900 is hereby repealed.

PART IV.

ELECTRICITY SUPPLY.

Generating station.

39. Subject to the provisions of this Act the Council may enter upon take and use the lands buildings and hereditaments described in the Second Schedule to this Act and may construct and maintain thereon a station for generating electrical energy and provide maintain work and use engines dynamos machinery generating plant buildings and works necessary or proper for carrying into effect the objects of this Act and of the Electric Lighting Order 1895 including the working of tramways by mechanical power Nothing in this Act shall authorise the Council to construct a station for generating electrical power elsewhere than on the lands described in the said schedule.

Power to supply electric fittings.

40. The Council may within the district provide sell let for hire and fix set up alter repair and remove (but shall not manufacture) lamps meters electric lines motors fittings apparatus and things for lighting heating and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines motors fittings apparatus and things as aforesaid both in existing and in new buildings and for securing (both as regards the consumer and third parties) their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

Electric lighting consumers to give notice before removing.

41. Twenty-four hours notice in writing shall be given to the Council by every electric lighting consumer before he shall quit any premises supplied with electric current by the Council and in default of such notice the consumer so quitting shall be

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply electric current to such premises whichever shall first occur. Provided that notice of the effect of this enactment shall be endorsed on every demand note for rent for current. A.D. 1904.

42. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Council for the time being shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding such date and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Council as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December. Altering date for filling up accounts for electric lighting.

43. The Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Council for the supply of electric light or electrical power or energy or fittings from every person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such sums. Provided that the Council shall make the same allowance to all consumers under similar circumstances. Discount on electric lighting and power accounts.

44. The Council may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Council in respect of a supply to the same or other premises. Council may refuse to supply electrical energy in certain cases.

45. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Council a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Council such minimum annual sum as will give to the Council a reasonable return on the capital expenditure and other standing charges incurred by the Council to meet the possible maximum demand of such person. In case the Council Supply of electricity where consumer has separate supply.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 Edw. 7.]
Act, 1904.

A.D. 1904. — and the person demanding such supply of electrical energy shall fail to agree as to the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

Supply of electricity in parts of Ainsworth and Outwood.

46.—(1) If the boundaries of the district are hereafter extended so as to include the part of the parish of Ainsworth and the part of the parish of Outwood which the Council have already by application to the Lancashire County Council sought to have included within the district or so as to include any portion of the said parts the Council shall be at liberty to supply electrical energy for all purposes within the area so added to the district and such area shall be deemed to be comprised within the area of supply for the purposes of the Electric Lighting Order 1895.

(2) The Council may supply electrical energy in bulk for the purpose of distribution within the part of the parish of Ainsworth which the Council have already by application to the Lancashire County Council sought to have included within the district and for the purposes of and in connexion with such supply the Council and the rural district council of Bury or any local authority company or person for the time being authorised by Act of Parliament or Provisional Order confirmed by Parliament to supply electrical energy within the said part of the said parish may with the sanction of the Board of Trade enter into and carry into effect agreements.

Supply of electricity for traction purposes in Whitefield.

47. The Council on the one hand and any local authority or person owning or working tramways in the urban district of Whitefield on the other hand may enter into and carry into effect agreements for the supply by the Council to such authority or person of electrical energy for the working of any tramway which may be constructed in the said urban district from the boundary of the district in Radcliffe New Road to a junction with the existing tramway in Bury New Road and from such junction along Bury New Road to the existing tramway in that road belonging to the corporation of Bury.

For protection of Whitefield Urban District Council.

48. Notwithstanding anything contained in this Act the Council shall not exercise the powers of the sections of this Act whereof the marginal notes are respectively :—

Agreements for leasing working &c. ;

Supply of electricity for traction purposes in Whitefield ;

within or with reference to any tramways within the urban district of Whitefield except with the consent of the Whitefield Urban District Council under their common seal. A.D. 1904.

49. Any expenses incurred by the Council in carrying into effect the provisions of this Part of this Act shall be deemed to be expenses incurred by the Council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses Any moneys received by the Council under this Part of this Act shall be applied in manner provided by section 52 of the Electric Lighting Order 1895 except capital moneys which shall be applied in manner provided by section 53 of the said Order.

Expenses and revenue under this Part of Act.

PART V.

MARKETS.

50. Every animal or article brought into any market and left therein after the hour of closing (except such as may be left in charge of the superintendent or inspector of the market) may be taken possession of by the superintendent or inspector In the case of any animal or non-perishable article so left if it be not claimed within one week the Council may proceed to sell the same and they shall return to the owner on demand the surplus proceeds of such sale after deducting any unpaid stallage rent or toll due in respect thereof together with the expenses of detention and sale In the case of any article of a perishable nature so left if it be not claimed within twelve hours the Council may proceed to sell the same and they shall return to the owner on demand the surplus proceeds of such sale after deducting any unpaid stallage rent or toll due in respect of the same together with the expenses of detention and sale If in any such case as herein-before mentioned no demand shall be made by an owner within one month of a sale for the return of any surplus arising from a sale the proceeds of such sale shall be forfeited to the Council.

Forfeiture of articles left in markets.

51. If any tenant shall not after any toll rent or charge has become due and payable to the Council in respect of any stall booth stand pen or shed in any market fair or slaughter-house and after demand has subsequently been made therefor pay the same within three days of the demand the Council may enter upon

Power to take possession of stalls for non-payment of rent.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

and take possession of any such stall booth stand pen or shed and re-let the same without prejudice to any other remedy for the recovery of such toll rent or charge.

Power to
license per-
sons follow-
ing certain
callings.

52.—(1) The Council may grant to any person they think fit a licence to carry on the calling of luggage porter public messenger or commissionaire and may charge a fee of one shilling for any such licence.

(2) The Council may make byelaws for regulating the conduct of any persons so licensed and the charges to be made by them.

(3) Any such licence may be granted for a year or for any less period according as the Council may think fit and may be suspended or revoked or endorsed by the Council for a breach of such byelaws or whenever they shall deem such suspension or revocation or endorsement to be necessary or desirable in the interests of the public.

(4) Every such licence whensoever issued shall expire on the thirty-first day of March next following the date of its issue and may contain conditions as to the badge which the holder of any such licence shall wear.

(5) If any person while unlicensed represents himself to be licensed by the Council or wears any badge for the purpose of holding himself out as licensed by the Council to carry on any of the callings specified in this section he shall be liable to a penalty not exceeding twenty shillings.

Appeal
against sus-
pension of
licences.

53. If any person feels himself aggrieved by the suspension or revocation of his licence he may appeal to a court of summary jurisdiction and such court may either confirm or annul such suspension or revocation or make such order in the matter as shall appear expedient.

PART VI.

STREETS BUILDINGS AND SEWERS.

As to plans
deposited
with Coun-
cil.

54. The Council may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force in the district or any byelaw thereunder.

Approval of
plan to be
void after
certain inter-
vals.

55. The approval by the Council of any plan or section of any street or building and the notice of intention to lay out or construct such street or building or any alteration of a building shall be null and void if the execution of the work specified in

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

such plan or section be not commenced within the following periods (that is to say) :— A.D. 1904.

As to plans or sections approved after the passing of this Act within two years from the date of such approval;

As to plans or sections approved before the passing of this Act within two years from the passing of this Act :

And at the expiration of those respective periods fresh notice and deposit and approval shall unless the Council otherwise determine be requisite.

The Council shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

56. No new street shall be laid out so as to be more than one hundred and twenty yards in length without an intersecting street. Intersecting streets.

57. No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. No buildings allowed until street defined.

58.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to Council may define future line of existing streets.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

every owner interested whose name and address they can ascertain
No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Council may and if required so to do by the owner shall purchase the land lying between any such line as aforesaid and the existing building line of the street or road where the same abuts upon the street or road and the same when purchased shall vest in the Council as part of the street or road.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to
vary position
or direction
of new
streets.

59. When the plans of any new street are submitted to the Council for approval the Council may vary or alter the position direction or level thereof for the purpose of causing it to communicate in a direct or more direct line with any other street adjoining or leading thereto and the Council shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section.

Council may
declare
where streets
begin and
end.

60. The Council may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

61. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street.

A.D. 1904.
Continuation
of existing
streets to be
deemed new
streets.

62. Every person desirous of forming a communication for horses cattle or vehicles across any kerbed or paved footpath so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Council and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footpath and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the satisfaction of the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise. If any person drives or permits or causes to be driven any horse cattle or vehicle across any footpath unless and until such a communication as aforesaid has been so made he shall for each such offence be liable to a penalty not exceeding forty shillings in addition to the amount of damage (if any) thereby done to such footpath:

Crossings for
horses or
vehicles over
footways.

Provided that nothing in this section shall be deemed to apply to the temporary crossing of footpaths during building operations if means satisfactory to the Council be taken to protect such footpaths from injury and for the convenience of foot-passengers:

63. It shall not be lawful for any person without the consent of the Council in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Council and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may remove any such materials rubbish or thing or fill up such excavation (as the case

Deposit of
building
materials or
excavations
not to be
placed with-
out consent.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — may be) and recover the expenses from the offender summarily as a civil debt.

Elevation of
buildings
erected on
front land to
be subject to
approval of
Council.

64. All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Council becomes front land shall be erected according to such elevation as the Council approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a plan approved by the Council and in case the Council for the space of six weeks after any plan of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Council shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

Height of
buildings.

65. No new building shall without the approval of the Council be erected on the side of any street which shall exceed in height the distance from the front of such building to the opposite side of such street nor shall the height of any building at any time erected on the side of any street be at any time subsequently increased without such approval as aforesaid so as to exceed such distance Provided that the approval of the Council shall not in the case of rebuilding any building existing at the passing of this Act be withheld so as to involve a material sacrifice of property In determining the height of any building the measurement shall be taken from the level of the centre of the street immediately opposite the centre of the front of the building up to the top of the parapet or to the eaves of the roof as the case may be In the case of a gable facing the street the measurement shall be to a point half-way between the level of the eaves and the ridge In the case of a roof which slopes away from the street at any greater angle to the horizon than fifty degrees the measurement shall be to the ridge of the roof and not to the eaves Provided

that where any new building shall front to two or more streets the height of such new building shall be determined according to the width of the widest of such streets. A.D. 1904. —

66. With respect to the height of chimneys the following provisions shall have effect (that is to say) :— Height of chimneys.

(1) Every chimney hereafter erected for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any mill factory brewery sizing-house dye-house corn-mill foundry or building used for manufacturing or other purposes shall be raised to such height measured from the level of the centre of the street nearest thereto as the Council shall reasonably approve having regard to the use of such chimney the position of dwelling-houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height :

(2) Any person who shall offend against any provision of this or the preceding section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

67. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall with respect to the district extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Council may determine to be dangerous or an obstruction to the safe or convenient use of any street. Projections over streets.

68. From and after the passing of this Act—

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;

The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house ;

What to be deemed new buildings.

A.D. 1904.

The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only; and

The roofing or covering over of any open space between walls or buildings;

shall for all the purposes of this Act and of the Public Health Acts and of any byelaws made thereunder respectively be deemed to be the erection of a "new building."

Temporary
and movable
buildings.

69.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Council shall within one month after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan sections and specification or after the disapproval of the Council or before the expiration of one month without such approval or is in any respect not in conformity with any condition attached by the Council to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building

or from the person erecting or setting up the same at their discretion. A.D. 1904.

(5) The following buildings and works shall be exempt from the operation of this section:—

- (A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the district in respect to new buildings and any tent not remaining for more than seven days;
- (B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Council may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion; and
- (C) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light.

70. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Council under the powers of this Part of this Act the Council may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance thereof to the owner of such building. Power to sell materials of temporary buildings.

71. Where under the provisions of the Public Health Acts or this Act the Council have power to require any street to be sewered by reason of such street not having theretofore been sewered to their satisfaction they may require the provision of separate sewers for the reception of surface water and of sewage respectively and the Council may if such separate sewers have been provided from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for sewage only and where in any street provision has been made for separate Separate sewers.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 Edw. 7.]
Act, 1904.

A.D. 1904. sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings Provided that in the case of any house or premises existing at the time of the provision of separate sewers as aforesaid the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such house or premises the Council shall at their own expense make all necessary alterations to the drains and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and pending any such alteration the said penalty shall not apply.

Council may
require en-
larged sewer.

72. If in any new street the Council for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street or if they require the sewer to be laid at a lower depth or altered level the person laying out such new street shall construct and lay such enlarged sewer or drain in accordance with the requirement of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Trees or
shrubs over-
hanging
streets and
footpaths.

73. Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

Council may
take pro-
ceedings for
preventing
obstructions
in water-
courses.

74. The Council may either in their own name or in the name of any other person with his consent take such proceedings by indictment action or otherwise as they may deem advisable for the purpose of preventing obstruction of any watercourse or outfall for water or for the removal of any obstruction from any watercourse or outfall for water.

75. With respect to the repairing or inclosing of dangerous places the following provisions shall have effect (namely) :—

A.D. 1904.

Dangerous places to be repaired or inclosed.

- (1) If any building wall fence steps structure or other thing or any well excavation reservoir pond stream dam or bank is for want of sufficient repair protection or inclosure dangerous to the passengers along any street or footpath the Council may order the owner within the period specified in such order to repair remove protect or inclose the same so as to prevent any danger therefrom :

- (2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Council may cause such works as they think proper to be done for effecting such repair removal protection or inclosure and the expenses thereof shall be payable by the owner and may be recovered summarily as a civil debt.

76. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon or adjoining any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully and any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable Provided that this section shall not apply to any lands of an agricultural character.

For preventing soil and sand from being washed into streets.

77.—(1) In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Council may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs.

Urgent repairs to private streets.

(2) If within such reasonable time as the Council may in such notice have specified such repairs are not executed the Council may

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. execute the same and may recover the cost of so doing from the owner or owners in default or if there be more than one owner in proportion to the frontage summarily as a civil debt.

(3) If the Council are unable to discover the name or abode of any owner the Council may execute such repairs without having served upon him any notice.

Courts &c. to
be flagged.

78. The owner or owners of any existing or future court yard or passage used in common by two or more occupiers (not being a public highway adopted and kept in repair by the Council) or of any part of such court yard or passage shall flag asphalte concrete or pave such court yard or passage or part thereof and make a drain through or along the same or such part thereof as the Council require and keep such flagging asphalting concreting or paving and drain in good repair and if any such owner or owners for one month after notice in writing from the Council fail in any respect to comply with this provision he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Council may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners summarily.

Yards to be
paved.

79. If any yard or open space in connexion with any dwelling-house erected before the passing of this Act shall not be so formed flagged asphalted or paved with impervious material as to allow the surface water being carried off to the drains the Council may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalte or pave such yard or open space for at least one hundred and fifty square feet where practicable immediately adjoining the offices of such house so as to allow of the surface water being carried off to the drains and within twenty-eight days after such notice shall have been so given to complete such several works and if such owner shall make default in complying with any of such requirements within the respective times aforesaid the Council may execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Council by such owner and may be recovered summarily as a civil debt.

Forecourts
to be fenced
off from
streets.

80. Whenever any person erecting any building shall be desirous of leaving an opening or of placing any steps or other projection in any forecourt area or space left in front of such

[4 Edw. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

building such forecourt area or space shall if required by the Council be well and sufficiently fenced off from the footpath or street and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. A.D. 1904.

81. The Council may make byelaws with respect to the materials with which new buildings shall be constructed and with respect to the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings. Byelaws as to building materials.

82. Nothing contained in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway. Exemption for railway property.

PART VII.

RECREATION GROUNDS.

83. The Council may in any recreation ground belonging to them erect provide maintain furnish and equip any pavilions assembly rooms reading rooms and other buildings which may be required or convenient for the purposes of such recreation ground and the public resorting thereto and may charge for admission to any of such buildings or in respect of the use thereof or of any part or parts thereof respectively Provided that the Council shall not charge for admission to any reading room on more than twelve days in any one year nor on more than four consecutive days on any one occasion. Council may erect buildings.

84. The Council may place or authorise any person or persons to place seats shelters or chairs in any street public park garden or recreation ground or other public place for the use of the public and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats shelters and chairs and for preventing injury or damage thereto. Chairs and seats for public use.

85. The Council may pay or contribute towards the payment of bands of music provided that the amount of such payments or contributions do not in any year exceed a sum equal to a rate of one halfpenny in the pound on the assessable value of the district for the purposes of the general district rate The Council may in Bands of music.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — any park garden or pleasure ground or other place inclose an area within which such bands shall play and make regulations as to the time and place for the playing of the bands the payments to be made for admission within the said inclosure and for securing good and orderly conduct during the playing of the bands :

Provided always that no payment or contribution shall be made under this section unless incurred in pursuance of a resolution of an absolute majority of the whole number of the Council at a meeting of the Council after seven clear days notice of such meeting and of the intention to propose such resolution.

Power to
set apart
portions of
recreation
grounds for
games.

86. The Council may set apart any portion of any park garden or pleasure ground for the time being belonging to or held by them for cricket bowls football tennis and other games and for the drill of volunteers yeomanry or cadets or of any military or police force and may make an agreement with any club or association by which such portion may be secured to the club or association for a period not exceeding three months but so that the same shall be open to the public when not in use for such games or drill or other purposes and the Council may make byelaws with respect to the use of any portions of a recreation ground so set apart.

Power to
provide
apparatus
for games.

87. The Council may provide apparatus for games and recreation for the use of the public frequenting any recreation ground within the district and may charge for the use thereof and they may lease or grant for any term not exceeding three years the right of providing and charging for such apparatus upon such terms and conditions as they think proper and the Council may make regulations with respect to the use and the payment for the use of such apparatus.

Public
drinking
fountains.

88. The Council may put up continue remove or discontinue drinking fountains and cattle troughs with proper conveniences for the gratuitous supply of water for drinking and for watering of cattle and horses at such fountains or troughs respectively and may furnish or discontinue such gratuitous supply (but for such drinking and watering only) in such recreation ground or public places as the Council may think fit and every person who shall wilfully use any water so gratuitously supplied elsewhere or otherwise than as herein-before mentioned or foul such water shall for every such offence be liable to a penalty not exceeding forty shillings which penalty may be recovered by the Council.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

89. The Council may appoint officers for securing the observ-
ance of this Part of this Act and of the byelaws and regulations
made thereunder and may procure such officers to be sworn in as
constables for that purpose but any such officer shall not act as a
constable unless in uniform or provided with a warrant.

A.D. 1904.
Power to
appoint
constables.

90. Any place of public resort cemetery or recreation ground
belonging to or under the control of the Council and any unfenced
ground adjoining or abutting upon any street shall for the purposes
of the Vagrancy Act 1824 and of any Act for the time being in
force altering or amending the same be deemed to be an open and
public place and shall be deemed to be a street for the purposes
of section 29 of the Town Police Clauses Act 1847 and also for
the purposes of so much of section 28 of that Act as relates to the
following offences :—

Extending
definition of
public place
and street
for certain
purposes.

Every person who suffers to be at large any unmuzzled
ferocious dog or urges any dog or other animal to attack
worry or put in fear any person or animal :

Every person who rides or drives furiously any horse or
carriage or drives furiously any cattle :

Every common prostitute or night walker loitering and im-
portuning passengers for the purpose of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or
exhibits to public view any profane indecent or obscene
book paper print drawing painting or representation or sings
any profane or obscene song or ballad or uses any profane
or obscene language :

Every person who wantonly discharges any firearm or dis-
charges any missile or makes any bonfire :

Every person who throws or lays any dirt litter ashes or night
soil or any carrion fish offal or rubbish on any street.

91. All expenses incurred by the Council in the exercise of
the powers of this Part of this Act shall be paid out of the district
fund and any moneys received by the Council in connexion with
the execution of the purposes of this Part of this Act shall subject
to payment of the expenses incidental to the execution of the said
purposes be carried to the credit of the district fund.

Expenses
and applica-
tion of
moneys
under this
Part of Act.

A.D. 1904;

PART VIII.

HOARDINGS AND SKY-SIGNS.

Hoardings
and other
structures
used for
advertising
purposes.

92.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

(2) It shall not be lawful after the passing of this Act to erect any such hoarding or similar structure to be used either wholly or partly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Council may determine.

(3) The owner or other person using any hoarding wall or similar structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the clerk or surveyor.

(6) Any person aggrieved by the refusal of the Council to give such consent or by the terms or conditions attached to such consent may appeal to a court of summary jurisdiction held for the district after the expiration of two clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they think fit and to award costs such costs to be recoverable summarily as a civil debt.

Regulations
as to sky-
signs.

93.—(1) It shall not be lawful to erect or fix to upon or in connexion with any house building or structure any sky-sign and it shall not be lawful to retain any existing sky-sign so erected or fixed for a longer period than three years after the

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
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passing of this Act nor during that period except with the licence of the Council and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed :

Provided that in any of the following cases a licence of the Council under this subsection shall become void namely :—

- (1) If any addition to any sky-sign be made except for the purpose of making it secure under the direction of the surveyor ;
- (2) If any change be made in the sky-sign or any part thereof ;
- (3) If the sky-sign or any part thereof fall either through accident decay or any other cause ;
- (4) If any addition or alteration be made to or in the house building or structure on over or to which any sky-sign is placed or attached if such addition or alteration involves the disturbance of the sky-sign or any part thereof ;
- (5) If the house building or structure over on or to which the sky-sign is placed or attached become unoccupied or be demolished or destroyed :

Provided also that if any sky-sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Council to take proceedings for the taking down and removal of the sky-sign in the same manner and with the same consequences as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

PART IX.

SANITARY PROVISIONS.

94.—(1) The Council may on the erection of any new building when a sewer and water supply sufficient for the pur- Power to require water-closets for

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 Edw. 7.]
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new build-
ings.

pose are reasonably available by written notice to the person by whom plans relating to the new building are deposited require that such new building shall be provided with proper and sufficient waterclosets.

(2) The Council may on the erection of any new building when a sewer and water supply sufficient for a watercloset are not reasonably available by written notice require one or more proper and sufficient earthclosets to be provided at or in connexion with such building.

(3) Any person offending against any requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Conversion
of existing
closet accom-
modation
into water-
closets.

95.—(1) When a sewer and water supply sufficient for the purpose are reasonably available the Council may by written notice to the owner of any building require any existing closet accommodation (other than a watercloset) provided at or in connexion with such building to be altered so as to be converted into a watercloset which shall comply with the byelaws for the time being in force and shall communicate with a sewer and they may also require a separate receptacle for ashes and house refuse to be provided at or in connexion with such building.

(2) If the owner of any such building fail in any respect to comply with a notice from the Council under this section the Council may at the expiration of a time to be specified in the notice (not being less than twenty-one days after the service of the notice) do the work specified in such notice and may recover from the owner the expenses incurred by the Council in so doing:

Provided that if in any case such alteration shall be required in respect of any existing closet accommodation which prior to the service of the notice under this section shall not have been certified by the medical officer to be insufficient for the necessities of the inhabitants of the building or to be in such state as to create a nuisance or to be injurious to health then the Council shall bear and pay such sum towards the expenses incurred by them (not less than one-half thereof) as they may consider just and proper according to the circumstances and the remainder of the expenses shall be borne by the owner.

(3) The Council may contribute towards the expenses incurred in making any alteration of any closet accommodation in pursuance

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

of this section in any case in which they may not be required to bear any part of such expense. A.D. 1904.

(4) The notice under the provisions of this section shall state the effect of the provisions of this section.

96.—(1) Where any person deems himself aggrieved by any requirements of the Council under the last two preceding sections or disputes the reasonableness of the expenses charged to him by the Council under such sections such person may within fourteen days after the service of notice of the requirement or of a demand for payment of the expenses appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties : Appeal under last two preceding sections.

Provided nevertheless that the right of appeal subsequent to the service of a demand for payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question.

(2) Pending the decision of the court upon such appeal the Council shall not be empowered to execute any works included in the notice and any proceedings which may have been commenced for the recovery of such expenses shall be stayed.

97. Where under the provisions of this Part of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Part of this Act are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. Work done on two or more properties.

98. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the bye-laws and regulations relating to the drainage of new buildings Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings. Reconstruction of drains.

99. Whenever the medical officer has reasonable grounds for believing that the drains connected with any building are defective so as to cause risk to health he may after twenty-four hours Owners to permit application of test to drains.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — notice and with the consent (except in the case of houses let in separate dwellings) of the owner or occupier of such building or in the event of objection by any such owner or occupier after obtaining the order of a court of summary jurisdiction apply such test (except the test of water under pressure) as he may consider efficient to such drains for the purpose of discovering any defects therein. Any owner or occupier who refuses notwithstanding such order to allow such tests to be made or to give all reasonable facilities for making such tests shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. If the drains be found defective the owner of the premises shall be bound (subject to the terms of any lease or other contract) on receiving notice from the Council to that effect specifying generally the nature of the defect to carry out all necessary operations for remedying the same within a reasonable time to be named in such notice and if he makes default in so doing the Council may enter and execute the work and recover the expenses thereof from the owner or other person liable under the lease or contract summarily as a civil debt or where the owner is the person liable as private improvement expenses are recoverable under the Public Health Acts. Provided that for the purposes of this section the word "drain" includes any sewer which is not vested in the Council.

Improper
construction
or repair of
watercloset
or drain.

100. If a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds. Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Wilful
damage to
drains and
waterclosets.

101. Any person who shall cause any drain watercloset earth-closet privy ashpit or dustbin to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work shall be liable to a penalty not exceeding five pounds Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such Act. A.D. 1904.

102. If it appear to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains for such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners or occupiers summarily as a civil debt Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council. Council may order houses to be drained by a combined operation.

103. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner. Amendment of section 19 of Public Health Acts Amendment Act 1890.

104. Before any drain existing at the time of the passing of this Act and not then communicating with any sewer of the Council shall be made to communicate with any sewer of the Council the Council may require the same to be laid open for examination by the surveyor or inspector of nuisances and no such communication shall be made until the surveyor or inspector of nuisances shall certify that such drain may be properly made to communicate with such sewer. Council may require old drain to be laid open for examination before communicating with sewers.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

Provision for
filling up
cesspools.

105. If it shall appear to the Council by the report of the medical officer surveyor or inspector of nuisances that any cesspool or other receptacle used or formerly used as a receptacle for excreta or other obnoxious matter or for the whole or any part of the drainage of a house or any ashpit or any well or disused well belonging to any such house or part of a house is prejudicial to health or otherwise objectionable for sanitary reasons and that it is desirable that the same should be filled up or removed or so altered as to remove any such objection as aforesaid the Council may if they think fit by notice in writing require the owner or occupier of such house or part of a house within a reasonable time to be specified in the notice to cause such cesspool receptacle ashpit or well to be fitted up or removed and any drain communicating therewith to be effectually disconnected destroyed or taken away or to cause such cesspool receptacle ashpit or well to be altered as to remove any such objection as aforesaid.

Where it appears that any such cesspool receptacle ashpit or well is used in common by the occupiers of two or more houses or parts of houses the notice for filling up or removal of any such cesspool receptacle ashpit or well may be served on any one or more of the owners or occupiers of such houses and it shall not be necessary to serve such notice on all such owners or occupiers.

If default is made in complying with the requisitions of a notice under this section the Council may themselves carry out the requisition and may recover the expenses incurred by them in so doing from the owners or occupiers in default summarily as a civil debt or where the owners are the persons liable as private improvement expenses are recoverable under the Public Health Acts.

Charge for
removing
trade refuse.

106. If any trade refuse materials or rubbish of a like description be deposited in any privy cesspool ashpit or dustbin the Council may make a reasonable charge for the removal of the same which charge shall be paid to the Council by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt.

Ejection of
steam not to
be an annoy-
ance to pub-
lic.

107. All steam or waste gas ejected from any fixed engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public but nothing in this section shall apply to steam ejected from any locomotive boiler or engine now or hereafter belonging to any railway company. A.D. 1904.

Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

108. For the purposes of section 112 of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established anew not only if it is established newly but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Council but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area. Defining the establishing of a new business.

109. For the purposes of the Public Health Acts—

- (A) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health ;
- (B) Any gutter drain shoot stackpipe or down-spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building ;
- (C) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health ;

Enlarging definition of nuisances.

shall be deemed to be a nuisance within the meaning of the said Acts.

110. Nothing contained in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway. Exemption of railways.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

PART X.

INFECTIOUS DISEASE.

Prohibition
on infected
person
carrying on
business.

111. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the district or pick fruit intended for consumption within the district or engage in any trade or business connected with food intended for consumption within the district or carry on any trade or business in such a manner as to be likely to spread such infectious disease within the district and any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings.

Protection
against in-
fection of
books from
lending
library.

112. No person shall take out of any public or lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any such library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice thereof to and leave the book at the office of the inspector of nuisances whose duty it shall be to cause the same to be disinfected and then returned to the librarian or owner or destroyed and if destroyed the Council shall pay to the owner thereof the value Any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings.

Council may
pay expenses
of persons in
hospital.

113. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Council may if they think fit themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

Compensa-
tion to dairy-
men.

114. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

Power to
provide
nurses.

115. The Council may provide or contract with any person or persons to provide nurses for attendance upon any person suffering from infectious disease within the district and may charge a reasonable sum for the service of any nurse so provided.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

116. If any person shall at the written request of the Council or the medical officer stop his employment for the purpose of preventing the spread of infectious disease within the district the Council shall make compensation to him for any loss he may sustain by reason of such stoppage.

A.D. 1904.

Power to
compensate
persons
ceasing em-
ployment.

117. If the Council deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising the Council to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit. Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian. The Council shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof and any expenses incurred by the Council under this section shall be paid out of the district fund and general district rate.

Further pro-
visions as to
isolation.

118. If any person suffering from any infectious disease is conveyed in any public vehicle within the district the owner or driver thereof as soon as it comes to his knowledge shall give notice to the medical officer and shall cause such vehicle to be disinfected and if he fails so to do he shall be liable to a fine not exceeding five pounds and the owner or driver of such vehicle shall be entitled to recover in a summary manner from the person so conveyed by him or from the person causing that person to be so conveyed a sum sufficient to cover any loss and expense incurred by him in connexion with such disinfection. It shall be the duty of the Council when so requested by the owner or driver of such public vehicle to provide for the disinfection of the same free of charge except in cases where the owner or driver conveyed such person knowing that he was so suffering.

Driver of
infected per-
son to give
notice.

119. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the district of such disease the medical officer shall give notice thereof to the person responsible for the conduct of the burial of the body of such person and it shall not be lawful to

Certificate
required be-
fore removal
by railway of
body of per-
son dying of
infectious
disease.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 Edw. 7.]
Act, 1904.

A.D. 1904. — transport such body by railway or other public conveyance (not being a conveyance reserved for such purposes) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

Power to
medical
officer to
examine
school chil-
dren.

120. The medical officer may enter any public elementary school within the district at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

Penalty on
guardian
permitting
infected
child to at-
tend school.

121. No person being the parent or having care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Disinfection
of clothes.

122. Any person taking or sending to any public wash-house or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Council to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Council shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things.

A.D. 1904.

123.—(1) Where on the certificate of the medical officer it appears to the Council that any articles in any house or part thereof are in such a filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Council may cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same.

Purification
of filthy
articles.

(2) If any owner suffer any unnecessary damage the Council shall compensate him for the same and the Council shall also reasonably compensate the owner for any articles so destroyed.

124. Every dairyman supplying milk within the district from premises whether within or beyond the district shall notify to the medical officer all cases of infectious disease among persons engaged in or in connexion with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

Dairymen to
notify infec-
tious disease
among their
servants.

125. If the medical officer shall have reasonable cause to believe that any person in the district is suffering from infectious disease attributable to milk supplied within the district he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to whom he has within such six weeks supplied milk within the district and the Council shall pay for every such list the sum of sixpence and after the rate of sixpence for every twenty-five names contained therein Every person failing to comply with any request of the medical officer under this section shall for each such offence be liable to a penalty not exceeding

Medical
officer may
require
dairymen to
furnish list
of sources of
their supply
of milk and
customers.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
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A.D. 1904. — forty shillings and to a daily penalty not exceeding twenty shillings.

Council may
provide
ambulances.

126. The Council may provide ambulances for use in cases of sickness and accident happening within the district and may maintain and keep the same in good order with all necessary horses and attendants and may allow the same to be used by other authorities and persons upon such terms as to payment or otherwise as may be agreed between the parties.

For regulat-
ing manu-
facture and
sale of ice
cream.

127. Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity or any materials used in the manufacture thereof who within the district—

(A) causes or permits ice cream or similar commodity to be manufactured sold or stored in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) in the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(C) omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

Inspection of
premises.

128.—(1) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry and inspection into any of the premises of any manufacturer or vendor of or merchant or dealer in ice creams or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

129. The Council shall cause public notice to be given of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix.

A.D. 1904.

Notice of provisions of this Part of Act.

PART XI.

TUBERCULOSIS.

130. Every person who knowingly sells or suffers to be sold or used for human consumption within the district the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty for selling milk of diseased cows.

131. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the district who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Penalty on failing to isolate diseased cows.

132. Every dairyman who supplies milk within the district and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is.

Obligation to notify cases of tuberculosis.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

133.—(A) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the district for examination samples of milk produced or sold or intended for sale within the district.

Power to take samples of milk.

(B) The like powers in all respects may be exercised outside the district by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

A.D. 1904.

Power to
inspect cows
and to take
samples of
milk.

134.—(A) If milk from a dairy situate within the district is being sold or suffered to be sold or used within the district the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so require be kept separate and separate samples thereof be furnished.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the district from consumption of the milk supplied from a dairy situate within the district or from any cow kept therein he shall report thereon to the Council and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Council may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the district until the order has been withdrawn by the Council.

(C) If the medical officer has reason to believe that milk from any dairy situate outside the district from which milk is being sold or suffered to be sold or used within the district is likely to cause tuberculosis in persons residing within the district the powers conferred by this section may in all respects be exercised in the case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Council may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the district on the council of the borough or district in which it is situate. A.D. 1904.

(F) The said order shall be forthwith withdrawn on the Council or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the district.

(G) If any person after any such order has been made supplies any milk within the district in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(H) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

135. The dairyman may appeal against an order of the Council made under the last preceding section or the refusal of the Council to withdraw any such order either to a petty sessional court having jurisdiction within the district or at his option if the dairy is situate outside the district to the Board of Agriculture and Fisheries who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the district and give notice thereof to the dairyman and the clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court. Appeal.

The Board of Agriculture and Fisheries may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture and Fisheries in the matter of the appeal.

The court or the Board of Agriculture and Fisheries as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture and Fisheries as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Council.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 Edw. 7.]
Act, 1904.

A.D. 1904.

Compensa-
tion to dairy-
man.

136. If an order is made without due cause or if the Council unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Council full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Council to withdraw the order.

The court or the Board of Agriculture and Fisheries may determine and state whether an order the subject of appeal has been made without due cause and whether the Council have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture and Fisheries or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

Notice of
provisions of
Part XI. of
this Act.

137. The Council shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix.

Procedure.

138. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Council before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

Expenses.

139. All expenses incurred by the Council in carrying into execution the provisions of this Part of this Act shall be chargeable upon the district fund and general district rate and the Council may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the district. Provided that no such test shall be applied except with the previous consent of the owner of such cow.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

140. This Part of this Act may be carried into execution by a committee of the Council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Council.

A.D. 1904.
Execution of
this Part of
this Act by
committee.

PART XII.

COMMON LODGING-HOUSES.

141.—(1) The keeper of every common lodging-house shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person who is appointed by him for that purpose and whose name is registered at the offices of the Council shall with the approval of the Council in writing under the hand of their officer appointed for that purpose (which approval and registration shall be revocable by the Council) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof as the case may be.

Regulations
as to common
lodging-
house
keepers.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

142.—(1) Every common lodging-house shall be provided with sufficient and suitable sanitary conveniences having regard to the number of lodgers who may be received therein and also with proper separate sanitary conveniences for persons of each sex.

Sanitary
conveniences
in common
lodging-
houses.

(2) Where it appears to the Council on the report of their inspector of nuisances that the provisions of this section are not complied with in the case of any common lodging-house the Council may if they think fit by notice require the keeper thereof to make such alterations and additions therein as may be required to provide such sufficient suitable and proper sanitary conveniences as aforesaid.

(3) Any person who shall neglect or refuse to comply with any such notice shall be liable for each default to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

143.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house or of the

Registration
of common
lodging-

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. keeper of a common lodging-house shall operate for one year only
houses and and application for the renewal of such registration shall be made
keepers. to the Council on or previous to the fifteenth day of May in
every year.

(2) (A) The Council may notwithstanding the provisions of section 78 of the Public Health Act 1875 refuse to register or to re-register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position:

(B) Any person aggrieved by such refusal may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as they may think fit and to award costs.

(3) Every person who without being registered in accordance with the Public Health Act 1875 and this Act shall keep a common lodging-house within the district and every person who after the thirty-first day of December one thousand nine hundred and four shall keep a common lodging-house without the registration of such person and of such house being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Notice to
common
lodging-
house
keepers.

144. Notice of the provisions of this Part of this Act shall be served upon the keeper of every common lodging-house within the district either personally or by leaving the same at the common lodging-house.

PART XIII.

PUBLIC VEHICLES.

Powers of
inspectors of
public
vehicles.

145. Any person appointed by the Council in writing may examine all hackney carriages and other public vehicles plying for hire within the district and shall see that the laws and byelaws relating to such public vehicles are duly observed. If any proprietor driver conductor or other person shall obstruct or hinder such person so appointed as aforesaid in the execution of his duty such proprietor driver conductor or person shall be liable to a penalty not exceeding forty shillings.

Public vehi-
cles taken at
railway sta-
tions.

146. The provisions of the Town Police Clauses Acts 1847 and 1889 and the byelaws of the Council with respect to public vehicles shall be as fully applicable in all respects to public

vehicles within the district conveying passengers to or from any railway station within the district as if such railway station were a public stand for public vehicles. A.D. 1904

147. An occasional licence for a public vehicle may be granted by the Council to be in force for such day or days or other period less than one year as may be specified in the licence. Occasional licences may be granted.

148. Nothing in this Part of this Act shall extend or apply to any vehicle belonging to or used by any railway company for the purpose of conveying passengers and their luggage to or from any railway station or to the drivers or conductors of such vehicle. Exemption for carriages of railway companies.

PART XIV.

LOCAL RATES.

149.—(1) From and after the passing of a resolution in that behalf by the Council the powers and duties of any assistant overseer or collector of poor rates appointed by the vestry or the guardians of the Bury Union for the parish of Radcliffe and the power of the guardians to appoint collectors of poor rates in respect of the said parish shall cease. Collection of local rates.

(2) Any assistant overseer or collector of poor rates of or for the said parish of Radcliffe who was in office before the passing of the resolution referred to in the preceding subsection of this section and for whom no equivalent office shall be found by the Council shall be deemed to be an officer entitled to compensation within the meaning of section 120 of the Local Government Act 1888 and that section shall with the necessary modifications and with the substitution of the "Local Government Board" for the "Treasury" and the "Council" for the "county council" apply accordingly. Provided that the non-acceptance of any office offered shall not be a bar to the right of any officer to compensation and any compensation payable by the Council under this subsection shall be paid out of the district fund. Provided that any officer to whom compensation shall be awarded in pursuance of this section shall not be deemed to have become entitled to a superannuation allowance under section 2 of the Poor Law Officers Superannuation Act 1896.

150. The Local Government Board may on the application of the Council prescribe amend and vary a form of rate to include the poor rate general district rate or other rates leviable by the Council or by the overseers of the parish of Radcliffe and they may Form of rate note.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — in respect of such rates prescribe a form of demand note receipt and other necessary documents and any form so prescribed shall be sufficient in law.

Custody of books.

151. All books of account minutes of proceedings maps deeds papers and writings belonging to the parish of Radcliffe now in the custody of the overseers or assistant overseers shall be deposited in the Council offices at Radcliffe and be there kept and preserved by the clerk and the ratepayers and the guardians and their officers shall at all times have the same right of inspection of and making extracts from such books and minutes as they had prior to the passing of this Act.

Assistants to overseers.

152.—(1) The Council may appoint and remove such officers as they may deem necessary to assist the overseers of the parish of Radcliffe in the discharge of their duties and the salaries and expenses of such officers shall be determined by the Council and paid out of the poor rate and other local rates and funds in such proportion as the Council shall determine.

(2) The assistant overseers to be appointed by the Council shall give such assistance with regard to the assessment of property to any valuer appointed or to be appointed by the guardians of the Bury Union or their assessment committee as has hitherto been given by the assistant overseers or the collector of poor rates.

PART XV.

FINANCIAL PROVISIONS.

Power to Council to borrow.

153. The Council may from time to time independently of any other borrowing power borrow at interest on the following securities for the following purposes sums not exceeding—

- (A) For the purchase of the lands for and for the construction of the street widenings authorised by this Act on the security of the district fund and general district rate the sum of thirty thousand pounds ;
- (B) For and in relation to the construction of the tramways authorised by the Tramways Order 1900 and the tramways authorised by this Act on the security of the tramway revenue and the district fund and the general district rate the sum of seventy-nine thousand three hundred and ninety-four pounds ;
- (c) For and in relation to the purchase of land for and the extension of the Town's Yard on the security of the

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

district fund and general district rate the sum of five thousand pounds; A D. 1904.

(D) For paying the costs of this Act as herein-after defined on the security of the district fund and general district rate the sum necessary for the purpose;

and with the sanction of the Board of Trade such further sums as the Council may require for the purposes of their tramway undertaking on the security of the revenue of that undertaking and of the district fund and general district rate and with the sanction of the Local Government Board such further sums as the Council may require for any of the other purposes of this Act on the security of the district fund and general district rate.

154. The Council may raise all or any moneys which they are authorised to borrow under this Act either by mortgage or by issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act with respect to the sinking fund to be provided for the repayment of moneys raised under this Act shall apply to any money raised under the Local Loans Act 1875 in lieu of the provisions of section 15 of that Act. Mode of raising money.

155. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which the Council may borrow under this Act shall not be reckoned. Certain regulations of Public Health Act as to borrowing not to apply.

156. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to mortgages granted under this Act (that is to say):— Provisions of Public Health Act as to mortgages to apply.

Section 236 Form of mortgage;

Section 237 Register of mortgages;

Section 238 Transfer of mortgages;

Section 239 Receiver may be appointed in certain cases.

157. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):— Periods for payment off of money borrowed.

As to moneys borrowed for the purposes (A) and (C) mentioned in the section of this Act the marginal note whereof is

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
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“ Power to Council to borrow ” within sixty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purpose (B) mentioned in the said section within thirty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purpose (D) in the said section mentioned within five years from the passing of this Act :

As to moneys borrowed with the approval of the Local Government Board or of the Board of Trade as the case may be within such periods as they may respectively think fit to sanction.

Mode of pay-
ment off of
money bor-
rowed.

158. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund.

Sinking
fund.

159.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund ; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1904.

(5) (A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an

A.D. 1904.

accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed :

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Sinking fund
may be ad-
justed in cer-
tain events.

160. If the Council out of the proceeds of the sale or disposition of lands or other moneys received on capital account repay any principal moneys borrowed under the powers of this Act the payments to any sinking fund applicable to the repayment of such principal moneys may be reduced to such extent and upon such terms as may from time to time be approved by the Local Government Board.

Scheme
for fixing
equated
periods for
repayment of
loans.

161. The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans then contracted or about to be contracted by them under statutory borrowing powers (including the loans authorised by this Act) shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme except with the consent of such mortgagee. A.D. 1904.

The Council may with the sanction of the Local Government Board borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto.

Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

162.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Return
respecting
sinking fund
to Local
Government
Board.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instal-

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — ment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to
re-borrow.

163. The Council shall except as herein-after provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Act which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. Provided that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Council not
to regard
trusts.

164. The Council shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register or books of the Council shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Council shall not be bound to see to the application of the money

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
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paid on any such receipt or be answerable or accountable for any loss mis-application or non-application of any such money. A.D. 1904.

165. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any of the provisions of this Act or be bound to see to the application or be answerable for any loss mis-application or non-application of the money lent or of any part thereof. Protection of lender from inquiry.

166. Nothing in this Act shall prejudicially affect any charge on the revenue and rates or the estates and property of the Council subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the revenue rate and property subject to his charge as if this Act had not passed. Saving for existing charges.

167. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are respectively authorised to be borrowed and to which capital is properly applicable. Application of borrowed moneys.

168.—(1) The Council shall apply all money received by them on account of tramway revenue in manner and in the order following (that is to say):— Application of tramway revenue and deficiency of receipts.

First In payment (in so far as they may be liable for the same) of the working and establishment expenses and cost of maintenance of the tramway undertaking (including the maintenance of so much of the roads in which the tramways are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870);

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the tramway undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments for the purposes of the tramway undertaking;

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the tramway undertaking;

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound

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interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the Council's tramways or of the works connected therewith and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund so much of any balance remaining in any year of the income of their tramway undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the tramway revenue shall be forthwith made good out of the district fund and the next general district rate to be made by the Council shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund.

Expenses of
execution of
Act.

169. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such as are to be paid out of borrowed money or are otherwise provided for) shall be paid out of the district fund and general district rate.

PART XVI.

LEGAL PROCEEDINGS.

General pro-
visions as to
byelaws.

170. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates to byelaws made by a rural sanitary authority) shall apply to all byelaws made by the Council under the powers of this Act.

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

171. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman or the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

A.D. 1904.
Evidence of
appoint-
ments and
authority.

172. In the case of any notice or demand under this Act requiring authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided always that in the case of any company any such notice order or document shall be delivered or sent by post addressed to the secretary or clerk of the company at their principal office or place of business.

Authentica-
tion and
service of
notices &c.

173. Any person deeming himself aggrieved by any order determination or requirement or the withholding of any certificate licence or consent or approval of or by the Council or of any officer or valuer of the Council or by the conviction or order made by a court of summary jurisdiction under any provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Council may in like manner appeal.

As to appeal.

174. Save as otherwise by this Act expressly provided all offences against this Act and penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties.

175. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any

Damages and
charges to be
settled by
justices.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

Penalties to be paid to treasurer.

176. All penalties recovered by the Council or any officer of the Council on their behalf under this Act or any byelaw thereunder shall be paid to the treasurer to the Council and carried by him to the credit of the district fund.

Compensation to be determined under Public Health Acts.

177. When any compensation costs damages charges or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts.

Compensation may be in land.

178. The Council when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent.

Saving as to indictments.

179. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that no person shall be punished twice for the same offence.

Judge not to be disqualified by payment of rates.

180. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate or by reason of his being a member of the Council.

PART XVII.

MISCELLANEOUS.

Powers of Act to be cumulative.

181. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights and remedies conferred on them or on any committee appointed by them by Act of Parliament and the Council or such committee as the case may be may exercise such other power and be entitled to such other rights and remedies as if this Act had

not passed Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence. A.D. 1904.

182. The Council may close to the public and reserve the exclusive use of any swimming bath belonging to them and may grant the use thereof to any company body or persons either gratuitously or for payment for swimming contests practices or exhibitions of aquatic exercises and may demand and take such sums for the exclusive use of such baths or for admission of persons thereto as they may think fit : As to closing baths.

Provided that no such swimming bath shall be closed under the powers of this section for more than six hours on any one day or on more than two days in one week.

183. The Council and the local authority of any borough or urban or rural district may enter into and carry into effect agreements for the common use of any fire engines with their appurtenances and firemen belonging to the Council or such local authority or for mutual assistance in case of fire. Agreements with local authorities for common use of fire appliances.

184. Every person who shall on Sunday in any street within the district cry or call out for sale any newspaper journal or serial or advertise by any cry or call any newspaper journal or serial or ring any bell or use any horn whistle or noisy instrument or create any noise whatsoever or howsoever for the purpose of selling any newspaper journal or serial or attract or attempt to attract the attention of any person or persons by means of any noise whatsoever whether vocal or otherwise for the purposes aforesaid or any of them shall for every such offence be liable to a penalty not exceeding forty shillings. Prohibition of street cries and noises.

185. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or do or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing doing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly. In executing works for owner Council not liable for damages save in case of negligence.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904.

Power to
create acci-
dent fund.

186. The Council may if they think fit form a fund to be called the accident fund to provide for meeting claims upon them under the Employers Liability and Workmen's Compensation Acts in respect of any accident occurring in the execution of any of their powers as a Council and such fund shall be formed by annually appropriating thereto out of any of their revenues such sum as they from time to time deem expedient and investing the same at compound interest in or upon any statutory securities and accumulating the same and the Council may from time to time resort to that fund for any purpose mentioned in this section. The said fund shall at no time exceed the sum of two thousand pounds but if it be reduced at any time it may be restored to the said amount.

Power to
grant gra-
tuities to
officers and
servants.

187. The Council may if they think fit grant a gratuity of any sum (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or to the widow or family of any such officer or servant who may die in their service or may at their discretion contribute any sum (not exceeding as aforesaid) to any charity or institution which may have undertaken the maintenance or relief of any such officer or servant. Every such gratuity or contribution shall be charged on and paid out of the fund or funds on which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

Consent of
Council to be
in writing.

188. All consents of and permission by the Council under this Act shall be given in writing and unless otherwise prescribed by this Act or by the Council shall be given under the hand of the clerk.

Power to
Local
Government
Board to
direct in-
quiries.

189.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary for giving effect to any of the provisions of this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

Board not exceeding three guineas a day for the services of such A.D. 1904.
inspector.

190. Except where otherwise expressed to the contrary any notice to or demand on the Council under this Act may be served on the Council by being delivered to the clerk or by being sent through the post in a prepaid letter addressed to the clerk. Service of notice on Council.

191. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Saving for Crown rights.

192. The costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act shall be taxed by the taxing officer of the House of Lords or of the House of Commons and shall be paid by the Council out of the district fund and general district rate or out of moneys borrowed for the purpose under this Act. Costs of Act.

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 Edw. 7.]
Act, 1904.

A.D. 1904. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

PROPERTIES OF WHICH PARTS ONLY MAY BE TAKEN.

Widening.	Nos. on deposited Plan (all Numbers inclusive).
Dumers Lane - - - - -	1 to 6
Bury Street - - - - -	7 and 8
Cross Lane and Spring Lane - - - - -	10 to 89
Cross Lane and Spring Lane - - - - -	93 to 117
Cross Lane and Spring Lane - - - - -	139 to 180
Rectory Lane and Church Street - - - - -	181 and 182
Church Street and Toad Street - - - - -	183
Church Street and Toad Street - - - - -	189 to 206
Blackburn Street - - - - -	207 to 222
Blackburn Street and Spring Lane - - - - -	223 to 234
Blackburn Street and Spring Lane - - - - -	238 to 265
Water Street - - - - -	266 to 275
Ainsworth Road - - - - -	276 to 289
Bolton Road - - - - -	290 to 300
Stopes Road - - - - -	301 to 305
Town's Yard Extension (Parsonage Street and Whit- taker Street) - - - - -	306 308 309 310 311

SECOND SCHEDULE.

LANDS FOR GENERATING STATION.

A piece or parcel of land situate in the urban district of Radcliffe containing five thousand five hundred square yards or thereabouts situate to the south-east of Dale Street bounded on the south-west by Lomax Street on the south-east by the River Irwell and on the north-east by lands and premises belonging to the representatives of the late Walker Hardman and partly in their occupation and partly in the occupation of Alice Bleakley.

THIRD SCHEDULE.

A.D. 1904.

THIS AGREEMENT made the twenty-eighth day of March one thousand nine hundred and four between the URBAN DISTRICT COUNCIL OF RADCLIFFE in the county of Lancaster (herein-after called "the Council") of the one part and ADAM CROMPTON BEALEY HERBERT CROMPTON BEALEY and ADAM CROMPTON BEALEY the younger of Bury and Radcliffe in the said county carrying on business as bleachers and chemical manufacturers under the style of A. C. Bealey and Sons (herein-after called "the Firm") of the other part.

WHEREAS by the Radcliffe Urban District Council Tramways Order 1900 (herein-after called "the Order of 1900") confirmed by the Tramways Orders Confirmation (No. 2) Act 1900 the Council were authorised to construct maintain and work certain tramways including a tramway therein described as Tramway No. 3 to be situate within the urban district of Radcliffe commencing in Blackburn Street and passing along Spring Lane Cross Lane Chapel Street Bury Street and Dumers Lane and terminating in Dumers Lane at a point being the defined boundary between the said district and the county borough of Bury at the centre of Hardy's Gate Bridge:

And whereas under Article 6 of the Order of 1900 it was provided that the said Tramway No. 3 should not be constructed in Chapel Street Bury Street or Dumers Lane opposite any house shop or warehouse belonging to or occupied by Messrs. Richard Bealey and Company (the predecessors of the Firm) without the consent in writing of that Firm and also that the said Tramway No. 3 should not be laid beyond Cross Lane without the consent in writing of the Board of Trade:

And whereas in the present session of Parliament the Council are promoting a Bill intituled "A Bill to confer on the urban district council of Radcliffe further powers with regard to their tramways undertaking to construct new tramways and street improvements to extend the Town's Yard and to make further provision in regard to the supply of electricity and for the improvement health local government and finance of the district and for other purposes" (herein-after called "the Bill"):

And whereas the Council are seeking by the Bill inter alia to obtain an extension of time for construction of the tramways authorised by the Order of 1900 and to obtain authority to make certain street improvements including a street widening therein referred to as "the Dumers Lane Widening" and described as "a street widening in Dumers Lane on the west side of the said street commencing at a point 9 yards or thereabouts from the north-east corner of the grounds of the Convalescent

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — “ Hospital and terminating at a point 65 yards or thereabouts from the
“ south-west corner of the approach road to Broad Dumers Works measured
“ in a south-westerly direction ” :

And whereas by clause 17 of the Bill as deposited it is provided that
“ the construction of the Dumers Lane widening shall be deemed to be in
“ satisfaction of the requirement contained in Article VI. of the Tramways
“ Order 1900 that the consent of Messrs. A. C. Bealey and Sons (being
“ the successors of Messrs. Richard Bealey and Company) shall be first
“ obtained ” :

And whereas for the purposes of the said street widening the Council
seek power under the Bill to purchase compulsorily or by agreement cer-
tain lands numbered 1 to 6 inclusive in the plans and book of reference
deposited in connexion with the Bill which lands are held on lease by the
said Adam Crompton Bealey and are in the occupation partly of the Firm
and partly of one James Smith the general manager of the Firm :

Now it is hereby agreed between the parties hereto as follows :—

(1) In constructing such portion of the said Tramway No. 3 as lies
between Cross Lane at Top of Cross and Hardy's Gate Bridge aforesaid the
Council shall construct a single line of tramways only with passing-places
in the situations indicated therefor upon the plan hereto annexed in lieu of
the passing-places shown in respect of the same portion of the said tramway
upon the plans deposited in connexion with the Order of 1900.

(2) The said Tramway No. 3 where the same crosses the private tram-
way shown upon the said plan annexed hereto shall be constructed to the
satisfaction of the Firm and in the execution of the work the Council shall
not interfere more than may be absolutely necessary with the working of
the said private tramway during ordinary working hours.

(3) In connexion with the construction of the said Tramway No. 3 the
Council shall reconstruct the culvert goit tubes pipes walls fences and other
works described and referred to in a plan and specification agreed upon
by the parties hereto and identified by the signatures of William Lythgoe
Rothwell on behalf of the Council and James Sellers on behalf of the Firm
and shall execute the work in accordance with the last-mentioned plan and
specification.

(4) If in the construction of the said Tramway No. 3 the Council shall
find it necessary to interfere with the culvert under Dumers Lane near the
said private tramway the Council shall at their own expense make and
carry out such alterations if any of the said last-mentioned culvert so as
not to lessen or contract the sectional area of such culvert.

(5) In constructing the said Tramway No. 3 the Council shall not
interfere with the access to the works of the Firm more than may be neces-
sary and shall not stop up the approach to the entrance to the said works

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
Act, 1904.

shown upon the plan annexed hereto from both directions at one and the same time. A.D. 1904.

(6) If and so long as during and by reason of the construction of the said Tramway No. 3 the flow of water now coming under Dumers Lane to the works of the Firm and used by them for condensing purposes shall be interfered with during ordinary working hours to such an extent that such flow shall be reduced below an amount equivalent to the capacity of a pipe 15 inches in diameter the Council shall provide and keep in working order such pipes or apparatus as will enable such water to flow to the works of the Firm in such manner and quantity as to ensure the receipt by the Firm during ordinary working hours of a total flow of water for condensing purposes of an amount not less than the equivalent of the capacity of a pipe 15 inches in diameter and in the event of any default by the Council in carrying into effect the provisions of this clause full compensation shall be paid by the Council to the Firm for such default.

(7) If and so long as the Council in the construction of the said Tramway No. 3 shall deprive the three water wheels situate on the works of the Firm of their water power the Council shall pay to the Firm a sum of four pounds per ordinary working day as compensation for such deprivation.

(8) The Firm and the said Adam Crompton Bealey shall immediately after the passing of the Bill and in consideration of the work hereby agreed to be executed by the Council assign and transfer to the Council at the expense of the Council and discharged so far as the Firm and the said Adam Crompton Bealey can discharge the same from any incumbrances rents or covenants affecting the same all the right and interest of the Firm and of the said Adam Crompton Bealey respectively in the lands shown upon the plans and described in the book of reference deposited in connexion with the Bill and therein numbered one to six inclusive and shall waive any right or claim they might otherwise have against the Council in respect of severance of such lands from or damage to or injurious affecting of any lands or premises adjoining thereto or held therewith and owned or occupied by the Firm or by the said Adam Crompton Bealey or by the said James Smith.

(9) In working the said Tramway No. 3 after construction thereof the Council shall not run their tramcars thereon at a speed greater than four miles an hour at the points where the same passes the said private tramway and the entrance to the works of the Firm shown upon the plan annexed hereto.

(10) After construction of the said Tramway No. 3 the said private tramway so long and so far as the same shall cross the said Tramway No. 3 shall be kept in repair by the Council.

(11) After construction of the said Tramway No. 3 the Firm shall be entitled from time to time on giving 14 days written notice to the Council

[Ch. ccxvi.] *Radcliffe Tramways and Improvement* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — of their intention so to do to repair take up and renew the culvert goit and other works to be reconstructed by the Council under the provisions of clause 3 of this agreement and any other existing drains or culverts or any other drains or culverts hereafter to be approved by the Council crossing under Durers Lane and conveying or intended to convey water to the reservoirs of the Firm or any renewals of such drains or culverts Provided always that such repairing taking up and renewing shall be carried out as expeditiously as possible and without negligence and in such manner and with such precautions as to interfere with or endanger as little as possible the safety of the said Durers Lane and the traffic passing thereover and the working of the tramways thereon and so as to cause no injury to or interference with any pipes wires or apparatus laid under the said Durers Lane for sewerage drainage water gas or electric supply or other purposes and the firm shall not be liable to compensate the Council for any damage caused by any operations of the Firm under the authority of this clause provided that such operations are carried out in strict accordance with the provisions of this clause.

(12) After construction of the said Tramway No. 3 the firm shall be entitled to carry overhead across the said Durers Lane telephone or electric wires for the purpose of establishing telephonic or electric lighting communication between the said works of the Firm and Ash Grove House occupied by the said James Smith or any other building already erected or hereafter to be erected by the Firm in connexion with their business or the convalescent hospital on the northerly or westerly side of Durers Lane Bury Street or Chapel Street Provided always that such telephone or electric lighting wires shall be erected in such situation and manner and with such safeguards as the Council may reasonably prescribe and shall be kept at all times maintained and repaired by the Firm to the reasonable satisfaction of the Council and shall be used only for the purposes of the ordinary business of the Firm and not for the purposes of any public service or telephonic business.

(13) The Bill shall be amended by the substitution in place of clause 17 thereof herein-before referred to of a provision repealing the proviso contained in Article 6 of the Order of 1900 as to the consent of Messrs. Richard Bealey and Company to the construction of the said Tramway No. 3.

(14) The Firm shall not oppose the passing of the Bill except so far if at all as may be necessary to ensure that the same shall proceed in accordance with the provisions of this agreement.

(15) This agreement is made subject to confirmation by Parliament under the Bill and subject to such alterations if any as Parliament may think fit to make therein and if any material alteration shall be so made it shall be competent to either party to withdraw from this agreement by notice in writing to the other before the passing of the Bill.

(16) If any difference shall arise between the parties hereto as to the construction of this agreement or as to any matter referred to in or arising

[4 EDW. 7.] *Radcliffe Tramways and Improvement* [Ch. ccxvi.]
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out of this agreement such difference shall be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force. A.D. 1904.

In witness whereof the Council have hereunto affixed their common seal and the parties hereto of the other part have hereunto set their hands and seals the day and year first before written.

The common seal of the urban district council of Radcliffe
was hereunto affixed by John Slingsby Esq. the Chairman
in the presence of

SAMUEL MILLS
Clerk to the said District Council.

L.S.

Signed sealed and delivered by the
before-named Adam Crompton
Bealey Herbert Crompton Bealey
and Adam Crompton Bealey the
younger in the presence of

JOS. PROPHET
Clerk to
Messrs. Saml. Woodcock & Son
Solicitors
Bury L.

ADAM C. BEALEY

L.S.

HERBERT C. BEALEY

L.S.

A. C. BEALEY JNR.

L.S.

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